



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CRM-M-33818-2026

Date of Decision.:12.06.2026

Jaspal Singh

.....Petitioner

Vs.

State of Punjab

.....Respondent

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Mohit Goel, Advocate for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of this petition filed under Section 482 of the BNSS, 2023, petitioner prays for grant of pre-arrest bail in case FIR No.106 dated 24.04.2026 registered under Sections 281, 106(1) of BNS, 2023 (Sections 279, 304-A of IPC, 1860) [Section 105 of BNS, 2023 (Section 304 of IPC, 1860) added later on] registered at Police Station Moti Nagar, Ludhiana, District Police Commissionerate, Ludhiana.

The FIR in question was registered against the petitioner on account of rash and negligent driving of Tipper bearing registration No. PB-10-DC-8355 resulting in the death of Raj Kumar. Initially FIR was registered under Sections 281 and 106(1) of BNS, 2023, corresponding to Sections 279 and 304-A of the IPC, 1860. The petitioner was allowed regular bail as the offences in question were bailable.

However later on offence under Section 105 of BNS, 2023 corresponding to Section 304 of IPC, 1860 has been added on the ground that the offending vehicle was not having valid Registration Certificate and Fitness Certificate. Because of this addition of Section 105 of BNS, 2023 petitioner apprehends arrest and has approached this Court.

It is submitted by learned counsel that petitioner was holding a

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valid Registration Certificate and even if it be assumed that there is no Registration Certificate or Fitness Certificate, that in itself cannot be a ground to invoke Section 105 of BNS, 2023 corresponding to Section 304 of IPC, 1860.

Notice of motion.

Ms. Shiny Chopra, AAG, Punjab accepts notice on behalf of respondent- State.

Having noticed the aforesaid facts and circumstances, present petition is hereby accepted.

In case of the arrest of the petitioner, he shall be released on interim bail to the satisfaction of the Arresting Officer/Investigating Officer, subject to the following conditions:-

- (i) The petitioner shall join the investigation as and when called upon to do so and shall cooperate with the Investigating Agency in all respects;
- (ii) The petitioner shall not directly or indirectly induce, threaten or influence any witness or any person acquainted with the facts of the case;
- (iii) The petitioner shall not leave the country without prior permission of the competent Court; and
- (iv) The petitioner shall comply with all the conditions stipulated under Section 482(2) of the BNSS, 2023.

(DEEPAK GUPTA)
JUDGE

June 12, 2024

Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No